TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar**. Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **12:00 p.m**. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling**.

August 18, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	**Stockstill vs. Interinsurance Exchange of The Automobile Club** **26-01558281**	Demurrer to Complaint FAC filed 07/29/2026 (ROA 38) - Demurrer is off calendar as MOOT
102	**Johnston vs. Disneyland** **25-01515207**	1.Demurrer to First Amended Complaint Defendant, Walt Disney Parks and Resorts U.S., Inc. dba Disneyland ("Defendant"), moves for an order sustaining the demurrer to every cause of action alleged in the First Amended Complaint of Plaintiff, Jeffrey Johnston ("Plaintiff"). Defendant contends that the claim in the First Amended Complaint is barred by Privette v. Superior Court (1993) 5 Cal.4th 689 because Plaintiff was an employee of an independent contractor that was hired to perform work at Defendant's property, and that neither the retained control exception nor concealed hazard exception applies as there is no allegation that any act of Defendant

		amounted to affirmative control over the work performed pursuant to Sandoval v. Qualcomm Incorporated (2021) 12 Cal.5th 256, for the former exception, and that there is no allegation of either actual or constructive knowledge of the existence of a lit burner pursuant to Kinsman v. Unocal Corp. (2005) 37 Cal.4th 659, for the latter exception. Defendant thus contends that because neither exception to the Privette doctrine applies, Plaintiff cannot state facts sufficient to support a cause of action for negligence against Defendant. Plaintiff argues Plaintiff has adequately pleaded ultimate facts supporting an exception to the Privette doctrine by pleading ultimate facts demonstrating that Defendant affirmatively contributed to the workplace injury through its retained control. “Generally, when employees of independent contractors are injured in the workplace, they cannot sue the party that hired the contractor to do the work. [Citation.]” (Seabright Ins. Co. v. US Airways, Inc. (2011) 52 Cal.4th 590, 594 (“Seabright”) citing to Privette v. Superior Court (1993) 5 Cal.4th 689.) The Privette rule applies when the party that hired the contractor fails to comply with workplace safety requirements concerning the contract's precise subject matter, and the injury is alleged to have occurred as a consequence of that failure. (Seabright, supra, 52 Cal.App.4th at p. 594.) “By hiring an independent contractor, the hirer implicitly delegates to the contractor any tort law duty it owes to the contractor’s employees to ensure the safety of the specific workplace that is the subject of the contract. That implicitly delegation includes any tort law duty the hirer owes to the contractor’s employees to comply with applicable statutory or regulatory safety requirements.” (Ibid.) “When a person or organization hires an independent contractor, the hirer presumptively delegates to the contractor the responsibility to do the work safely. [Citations.]” (Sandoval v. Qualcomm Incorporated

		(2021) 12 Cal.5th 256, 269 (“Sandoval”).) “Because we typically expect contractors to perform the contracted work more safely than hirers, we have endorsed a ‘strong policy’ of presuming that a hirer delegates all control over the contracted work, and with it all concomitant tort duties, by entrusting work to a contractor. [Citation.] Considering this presumption, we have refused to extend liability to hirers even on theories of nominally ‘direct’ liability, such as negligent failure to require precautions or negligent hiring of an incompetent contractor. [Citation.]” (Id. at p. 270.) “But that presumption gives way to two recognized exceptions: where the hirer either withholds critical information regarding a concealed hazard (Kinsman v. Unocal Corp. (2005) 37 Cal.4th 659, 664, 36 Cal.Rptr.3d 495, 123 P.3d 931 (Kinsman)); or retains control over the contractor’s work and actually exercises that control in a way that affirmatively contributes to the worker’s injury (Hooker v. Department of Transportation (2002) 27 Cal.4th 198, 202, 115 Cal.Rptr.2d 853, 38 P.2d 1081 (Hooker)).” (Id. at p. 264.) The Privette doctrine gives way to exceptions when a hirer withholds critical safety information and fails to effectively delegate its responsibilities in practice, or a hirer delegates its responsibilities only partially by retaining control of certain activities directly related to the contracted work. (Id. at p. 271.) In Kinsman, the California Supreme Court “articulated the rule that a landowner-hirer owes a duty to a contract worker if the hirer fails to disclose to the contractor a concealed premises hazard. [Citation.]” (Ibid.) In Hooker, the California Supreme Court “articulated the rule that the hirer owes a duty to a contract worker if the hirer retains control over any part of the work and actually exercises that control so as to affirmatively contribute to the worker’s injury. [Citation.]” (Ibid.) There is an exception when the hirer’s conduct has affirmatively contributed to the injuries of the contractor’s employee. (Hooker v. Department of Transportation (2002) 27 Cal.4th 198, 211-212 (“Hooker”).) “[M]ere retention of the ability to control safety conditions is not enough. ‘[A] general contractor

		owes no duty of care to an employee of a subcontractor to prevent or correct unsafe procedures or practices to which the contractor did not contribute by direction, induced reliance, or other affirmative conduct . . . .' " (Id. at p. 209.) " '. . . . The mere failure to exercise a power to compel the subcontractor to adopt safer procedures does not, without more, violate any duty owed to plaintiff. . . .' " (Ibid.) Under the retained control exception in Hooker, the plaintiff "must establish not only that the hirer retained control over the contracted work, but also that the hirer actually exercised that retained control in a manner that affirmatively contributed to the contract worker's injury. [Citation.]" (Sandoval, supra, 12 Cal.5th at p. 274.) A hirer 'retains control' where it retains a sufficient degree of authority over the manner of performance of the work entrusted to the contractor." (Ibid.) Additionally, "a hirer's authority over the contracted work amounts to retained control only if the hirer's exercise of that authority would sufficiently limit the contractor's freedom to perform the contracted work in the contractor's own manner. [Citations.]" (Id. at p. 275.) "A hirer 'actually exercise[s]' its retained control over the contracted work when it involves itself in the contracted work' such that the contractor is not entirely free to do the work in the contractor's own manner.' [Citations.]" (Sandoval, supra, 12 Cal.5th at p. 276.) "Unlike 'retained control,' which is satisfied where the hirer retains merely the right to become so involved, 'actual exercise' requires that the hirer in fact involve itself, such as through direction, participation, or induced reliance. [Citations.]" (Ibid.) " 'Affirmative contribution' means that the hirer's exercise of retained control contributes to the injury in a way that isn't merely derivative of the contractor's contribution to the injury. [Citation.]" (Sandoval, supra, 12 Cal.5th at p. 277.) "Where the contractor's conduct is the immediate cause of injury, the affirmative contribution requirement can be satisfied only if the hirer in some respect induced – not just failed to prevent – the

		contractor's injury-causing conduct. [Citations.]" (Ibid.) "It is not enough for the hirer's exercise of control to incidentally give the hirer the opportunity to prevent the contractor's injury-causing conduct. [Citation.]" (Ibid.) "A hirer's conduct also satisfies the affirmative contribution requirement where the hirer's exercise of retained control contributes to the injury independently of the contractor's contribution (if any) to the injury. [Citations.]" (Ibid.) "Importantly, neither 'actual exercise' nor 'affirmative contribution' requires that the hirer's negligence (if any) consist of an affirmative act. The hirer's negligence may take the form of any act, course of conduct, or failure to take a reasonable precaution that is within the scope of its duty under Hooker. [Citations.]" (Ibid.) "If a plaintiff provides that the hirer actually exercised retained control in a way that affirmative contributed to the contract worker's injury, the plaintiff establishes that the hirer owed the contract worker a duty of reasonable care as to that exercise of control," and "[t]he Privette doctrine does not bar liability. [Citation.]" (Sandoval, supra, 12 Cal.5th at p. 278.) Defendant contends that Sandoval is factually analogous to the case at issue. In Sandoval, the California Supreme Court found that substantial evidence did not support the conclusion that the defendant had both retained control over some part of the independent contractor's work and actually exercised that control in a manner that affirmatively contributed to plaintiff's injury. (Sandoval, supra, 12 Cal.5th at p. 279.) The facts in Sandoval involved an electrical parts specialist who sustained third-degree burns after he triggered an arc flash from a circuit he did not realize was "live" with flowing electricity, and where the contractor for whom he had been working had removed the protective cover on that live circuit while work was underway. (Id. at p. 264.) Qualcomm (the hirer) hired TransPower Testing, Inc., an electrical engineering service company, to inspect and verify the amperage capacity of Qualcomm's existing switchgear equipment. (Id. at p. 265.) TransPower's president hired Sandoval (plaintiff), who was an electronical parts supply

		and repair specialist with ROS Electrical Supply & Equipment to accompany him at an inspection for Qualcomm. (Id. at p. 266.) For this inspection, Qualcomm approved a scope of work authorizing TransPower to inspect the main cogen circuit from the front and back but did not authorize TransPower to inspect (or expose) any other circuits at this time. (Ibid.) On the morning of the inspection, Qualcomm reminded TransPower's president and his team that some circuits in the switchgear would remain live, and Qualcomm performed a power-down process in the switchgear room to ensure no live electricity flowed through the main cogen cubicle during the inspection. (Ibid.) All other circuits in the switchgear room remained live with utility power. (Ibid.) After Qualcomm's employees left the room, TransPower's president instructed his employee to remove the bolted-on back protective panel from the immediately adjacent GF-5 cubicle, which he knew was still live with electricity from utility power. (Id. at p. 267.) At some point during the inspection, Sandoval walked away from the rest of the TransPower team because he would have trouble judging the size of some of the main cogen busbars from the front side of the cabinet, and he thought he might get a better view from the back. (Ibid.) As he approached the back side of the cabinets, he was holding a metal tape measure, which triggered an arc flash from the live, exposed GF-5 circuit, and he was set aflame. (Ibid.) As a result, Sandoval sustained third-degree burns to about one-third of his body surface, in addition to second-degree burns, pneumonia, multiple infections, lasting discomfort, and the loss of full use of his left arm. (Id. at p. 268.) Under these facts, the California Supreme Court found that Qualcomm did not owe plaintiff a retained-control duty regarding the power-down process itself because the power-down process was not within the scope of work Qualcomm had entrusted to TransPower: inspecting the main cogen circuit. (Sandoval, supra, 12 Cal.5th at pp. 279-280.) The Court also found that Qualcomm did not retain control over the inspection merely by declining to shut down the other circuits or to give TransPower the authority to do so as TransPower "was aware of and had

		ample freedom within the scope of its entrusted work to accommodate the presence of the live circuits effectively in its own manner, ...” (Id. at p. 280.) The Court additionally found that while Qualcomm may have had authority by virtue of performing the power-down process or otherwise, to require specific precautions during the inspection, it did not “actually exercise” that authority as TransPower remained entirely free to implement any precautions, i.e., supervision, a personal warning for Sandoval, arc flash protections suits, barricades, and/or additional warning signage, in its own manner. (Id. at pp. 280-281.) The Court noted that there was no argument or evidence that Qualcomm’s performance of the power-down process induced TransPower’s failure to take any of these precautions itself. (Id. at p. 281.) The Court further found that Qualcomm did take one precaution by leaving the bolted-on protective covers over all of the live circuits for which Qualcomm could be said to have retained and actually exercised control over the inspection by implementing this precaution, but there was no evidence that Qualcomm “affirmatively contributed” to Sandoval’s injury. (Ibid.) Here, the First Amended Complaint (“FAC”) alleges that Plaintiff is an employee of California Industrial Refrigeration Machine Company and was employed as an appliance and HVAC technician on or about October 2024, when he was sent to Disneyland to troubleshoot an oven that was not working properly. (FAC, ¶¶ 3, 9.) It is alleged that on or about October 15, 2024, Plaintiff’s employer sent Plaintiff to Disneyland to make the repairs. (FAC, ¶ 10.) It is alleged that “[a]t the outset of his work, JOHNSTON spoke with DISNEYLAND’S manager to make sure that all nearby gas lines were disconnected because JOHNSTON would be working on the gas lines”; that “contrary to standard safety practices, DISNEYLAND did not maintain a main shut off valve at the meter bank placing persons such as Plaintiff in peril”; that “JOHNSTON did not have the ability, access or knowledge of Disney’s main shut off and reasonably relied on the representation of the DISNEY manager”; and that “[t]hrough its manager, DISNEYLAND assured

		JOHNSTON that all nearby gas lines has [sic] been turned off and that nothing burning gas was in use." (FAC, ¶ 11.) The FAC additionally alleges as follows: After receiving this assurance from DISNEYLAND's, JOHNSTON turned off the gas on the Wolff Oven he was there to repair, cracked the gas line to make sure it was off, and replaced all the parts. At that time, he noticed the line was disconnected, and he went to his van to get tape and supplies to reconnect it. Unbeknownst to him, there was a burner on next to the oven, and when JOHNSTON attempted to reconnect the line, he was engulfed in a fiery explosion, causing second-degree burns to his face and hands. (FAC, ¶ 12.) The FAC further alleges: DISNEYLAND failed to exercise due care in the maintenance of its equipment, failed to notify JOHNSTON of any artificial dangers that may cause serious risk of injury and specifically the gas appliances referred to herein, which were so ill maintained as to present an unreasonable danger. DISNEYLAND'S manager failed to use reasonable care by permitting Plaintiff to work on gas lines he had been assured were turned off and by failing to turn off said lines, thereby concealing a dangerous condition. DISNEYLAND unreasonably failed to have a main shut-off valve for the referenced gas appliances as required by local and state law. (FAC, ¶ 13.) Contrary to Defendant's assertion, the alleged facts here are not analogous to Sandoval. In Sandoval, there was no assurance that the live wires were not live, and communications were not made to the employee of the independent contractor. Here, an assurance was made directly to the employee of the independent contractor that all nearby gas lines were, when in fact they were not.

		Based on the allegations, the alleged assurance by Defendant’s manager that all nearby gas lines had been turned off and that nothing burning gas was in use, when in fact, a burner was on next to the oven, supports retained control over the contracted work, i.e., to repair an oven that was not working properly. By making such assurance, Defendant induced reliance by Plaintiff, and Defendant retained a sufficient degree of control over the manner of performing the contracted work because only Defendant could control whether all nearby gas lines had been turned off. In this regard, Defendant retained the right to take safety measures regarding Plaintiff’s performance of the work entrusted to him. Additionally, Defendant exercised its retained control over the contracted work because Plaintiff spoke with Defendant’s manager to make sure all nearby gas lines were disconnected since Plaintiff would be working on the gas lines, and Defendant’s manager assured Plaintiff that all nearby gas lines had been turned off. Lastly, the failure to turn off all gas lines and/or ensure that no burning gas was in use affirmatively contributed to Plaintiff’s injuries. “[A]ffirmative contribution need not always be in the form of actively directing a contractor or contractor’s employee. There will be times when a hirer will be liable for his omissions. For example, if the hirer promises to undertake a particular safety measure, then the hirer’s negligent failure to do so should result in liability if such negligence leads to an employee injury.” (Hooker, supra, 27 Cal.4th at p. 212, fn. 3.) Assuming the truth of the allegations and all reasonable inferences, they are sufficient to fall within the retained control exception espoused in Hooker. On demurrer, a complaint must be liberally construed. (Code Civ. Proc. § 452; Stevens v. Superior Court (1999) 75 Cal. App. 4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal. 4th 962, 966-67.)

		The demurrer to the First Amended Complaint is OVERRULED. Defendant to file an Answer within 10 days. Plaintiff to give notice 2. Case Management Conference
103	**Yanishevska vs. Laboratory Corporation of America Holdings** **26-01545506**	1. Demurrer to Complaint Defendant Laboratory Corporation of America Holdings ("Defendant") demurs to the second and fourth causes of action of plaintiff Iryna Yanishevska's ("Plaintiff") Complaint. Second Cause of Action for Negligence (Res Ipsa Loquitur) Defendant argues that res ipsa loquitur is a rule of evidence and not an independent ground of liability. Defendant further argues that Plaintiff's first and third causes of action already allege negligence and whether Plaintiff will be entitled to a jury instruction on res ipsa loquitur based on those claims will be determined at trial, but Plaintiff cannot plead the doctrine of res ipsa loquitur as a separate cause of action. Plaintiff does not dispute that res ipsa loquitur is a presumption affecting the burden of producing evidence. However, Plaintiff requests leave to amend to incorporate the res ipsa loquitur allegations into the professional negligence cause of action. "Res ipsa loquitur is a rule concerning the presentation of evidence; it is not an independent ground of liability." (Gicking v. Kimberlin (1985) 170 Cal.App.3d 73, 78.) Thus, Plaintiff's attempt to plead an independent cause of action based on the res ipsa

		loquitur doctrine is improper and the Demurrer is SUSTAINED with 20 days leave to amend. Fourth Cause of Action for Medical Battery Defendant argues Plaintiff is improperly attempting to couch a medical negligence claim as one for medical battery. Defendant points out that Plaintiff admits that she consented to a routine venipuncture on her right arm and does not allege that Defendant performed a substantially different procedure. Instead, she merely alleges that the phlebotomist performing the procedure struck her median nerve. Defendant further argues that Plaintiff’s attempts to plead revocation of her consent failed because, for Plaintiff to effectively withdraw her consent to the procedure, Plaintiff needed to clearly communicate her revocation to the phlebotomist, and Plaintiff alleges no such communication. Plaintiff contends the allegations show that she revoked consent during the procedure. When the phlebotomist asked Plaintiff whether she wanted to continue, Plaintiff responded that she did not know. Thus, there was no valid, informed, and voluntary consent to proceed. “It is well settled that a physician who performs a medical procedure without the patient's consent commits a battery irrespective of the skill or care used.” (Conte v. Girard Orthopedic Surgeons Medical Group, Inc. (2003) 107 Cal.App.4th 1260, 1266-1267.) “A typical medical battery case is where a patient has consented to a particular treatment, but the doctor performs a treatment that goes beyond the consent.” (Id. at p. 1267.) Where, on the other hand, “the patient consents to certain treatment and the doctor performs that treatment but an undisclosed inherent complication with a low probability occurs, no intentional deviation from the

		consent given appears; rather, the doctor in obtaining consent may have failed to meet his due care duty to disclose pertinent information. In that situation, the action should be pleaded in negligence." (Cobbs v. Grant (1972) 8 Cal.3d 229, 240.) Here, Plaintiff alleges she consented only to a routine venipuncture procedure. During the procedure, a phlebotomist employed by Defendant negligently inserted a needle into her right arm, causing her permanent injuries. Immediately upon insertion of the needle, Plaintiff experienced an acute, severe, electric-like pain and complained to the phlebotomist, audibly reacted, and physically recoiled. In response to Plaintiff's reaction, the phlebotomist asked Plaintiff if she wished to continue with the procedure and Plaintiff responded that she did not know. Plaintiff asserts that, based on this equivocal response, any prior consent to the procedure was revoked, limited, and/or rendered ineffective and the continued insertion and use of the needle in Plaintiff's arm constituted a harmful and offensive touching of her person without her consent. Defendant cites Cobbs in support of its first argument. However, in Cobbs, the Court of Appeal discussed instances in which consent was given to a procedure, but an undisclosed inherent complication arose. The Court of Appeal held that these circumstances give rise to a medical negligence claim based on the failure to disclose pertinent information. Here, Plaintiff does not allege that the injuries she sustained during the procedure were undisclosed such that her consent was ineffective. Instead, she is alleging that her consent was revoked. Thus, Cobb's is inapt. In arguing that Plaintiff's alleged revocation of consent is insufficient, Defendant relies on non-binding out-of-state authority while conceding that there are no California cases addressing withdrawal or revocation of consent in the middle of a medical procedure. Thus, Defendant has failed to demonstrate that Plaintiff's

		medical battery cause of action fails as a matter of law under binding California authority. Even if the Court were to consider Mims v. Boland (1964) 110 Ga. App. 477, Defendant's argument would fail. Mims provides that for withdrawal of consent while treatment is in progress to be effective, "[t]he patient must act or use language which can be subject to no other inference, and which must be unquestioned responses from a clear and rational mind. These actions and utterances of the patient must be such as to leave no room for doubt in the minds of reasonable men that in view of all the circumstances consent was withdrawn." (Id. at p. 478.) Here, while Plaintiff did not respond to the question of whether she wanted to proceed with the procedure with a clear "no," which would have shown that she unequivocally withdrew her consent, her response was also not a clear "yes," which would have shown that she still consented to the procedure. Instead, her response that she was not sure was ambiguous. Whether this constitutes effective withdrawal of her consent is a question of fact not suitable for resolution on demurrer. Thus, the Demurrer is OVERRULED as to the fourth cause of action. Moving party to give notice 2. Case Management Conference
104	**Jones vs. PHH Mortgage Inc.** **25-01473497**	1. Demurrer to Second Amended Complaint 2. Motion to Strike Portions Of Second Amended Complaint Defendants ONITY MORTGAGE CORPORATION f/k/a PHH MORTGAGE CORPORATION (erroneously sued as "PHH Mortgage Inc."), successor

		by merger to OCWEN LOAN SERVICING, LLC (erroneously sued as separate entities) (hereinafter "PHH"), ONITY GROUP INC. (erroneously sued as "Onity Mortgage Group") (hereinafter "ONITY"), and GLEN A. MESSINA (erroneously sued as "Glen A. Massina") (hereinafter "MESSINA"), (collectively "Defendants"), hereby demur to the Second Amended Complaint ("SAC") filed by Plaintiff DESIREE A. JONES ("Plaintiff"). This Demurrer is made on the grounds that the Complaint fails as a matter of law as it is uncertain, contradictory to prior pleadings and fails to state facts sufficient to constitute any cause of action against Defendants. Code Civ. Proc. §430.10, subd. (e) and (f). DEMURRER AND MOTION TO STRIKE (ROAS 66, 67) ARE **CONTINUED** TO **09/29/2026** AT 10:00 AM. Defendants filed an objection indicating they did not receive the opposition. Plaintiff to properly reserve the opposition forthwith. Defense counsel and Plaintiff are to properly meet and confer per code, and Defense counsel is to file a declaration setting forth the results 9 court days prior to the continued hearing date. Clerk to give notice.
105	**Moslehi vs. County of Orange** **24-01428581**	Motion to Vacate the Jury Trial Plaintiff Arash Moslehi seeks an order vacating the jury trial and setting the case for bench trial. There is no proof of service accompanying the motion, and none of the remaining defendants has filed a response to the motion. The motion is therefore denied for failure to comply with Code of Civil Procedure section 1005, which requires all moving papers to be served and filed at least 16 court days before the hearing. (CCP §1005(b).) In addition, a proof of service of the moving papers

		must be filed no later than five court days before the hearing. (CRC 3.1300(c).) Even if the motion were properly served, Defendant has provided no memorandum of authorities to support the relief requested. (See CRC 3.1113(a) ("The court may construe the absence of a memorandum as an admission that the motion . . . is not meritorious and cause for its denial . . .").) Finally, even if the Court considered the merits, the motion would be denied because at least one party has requested a jury trial in this matter and posted the required fees. (See, e.g., ROA 60.) "As a general proposition, the jury trial is a matter of right in a civil action at law, but not in equity." (C & K Engineering Contractors v. Amber Steel Co., Inc. (1978) 23 Cal.3d 1, 8; NMSBPCSLDHB v. County of Fresno (2007) 152 Cal.App.4th 954, 958.) This is a civil action, and the complaint appears to consist primarily, if not entirely, of legal causes of action. Accordingly, the motion is DENIED. The Court orders the Clerk to give notice.
106	**S.K. Laboratories, Inc. vs. Tiger Fitness, Inc.** **24-01422874**	Motion for Entry of Judgment Plaintiff S.K. Laboratories, Inc. ("Plaintiff" or "SKL") moves the Court for entry of judgment against Defendants Tiger Fitness, Inc., Vorlo, Inc., and Chad Vordem Esche (collectively, "Defendants") pursuant to the terms of a Stipulation for Entry of Judgment Upon Default. Motion is denied without prejudice. Defendants are in default. Entry of default deprives the court of jurisdiction to consider any motion other than a motion

		for relief from default. [W.A. Rose Co. v. Mun.Ct. (FitzSimmons) (1959) 176 CA2d 67, 72.] Plaintiff to give notice.
107	**Birchall vs. Orange County Sheriff Department** **25-01505924**	1. Motion for Judgment on the Pleadings Defendant COUNTY OF ORANGE, a public entity, erroneously sued and served herein as ORANGE COUNTY SHERIFF'S DEPARTMENT (the "County"), will and hereby does move the Court, pursuant to California Code of Civil Procedure Section 438 and this Court's non statutory authority to hear motions for judgment on the pleadings, for an Order granting Defendant's Motion for Judgment on the Pleadings without leave to amend and dismissing Plaintiff MARC BRUCE RONALD BIRCHALL's Complaint. On 8/25/2025 Plaintiff initiated this lawsuit by filing a Complaint. On 4/30/2026 Defendant served Plaintiff via email with this Motion for Judgment on the Pleadings. Plaintiff is in pro per. Notably, all papers opposing a motion "shall be filed with the court and a copy served on each party at least nine court days" before the hearing. [Code Civ. Proc. § 1005(b).] A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by CCP § 438, the rules governing demurrers apply. [Cloud v. Northrop Grumman Corp. (1998) 67 CA4th 995, 999.] The failure to oppose a demurrer may be construed as having abandoned the claims. [See Herzberg v. County of Plumas (2005) 133 Cal. App. 4th 1, 20 --"Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no

		argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue".] In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. [DuPont Merck Pharmaceutical Co. v. Sup. Ct. (2000) 78 Cal.App.4th 562, 566--"By failing to argue the contrary, plaintiffs concede this issue"; Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529--"failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot"; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424--issue is impliedly conceded by failing to address it.] Here, no opposition to the Motion for Judgment on the Pleadings has been filed; and therefore, the Court deems the motion unopposed and construes the failure to oppose the Motion as an abandonment of Plaintiffs' claims. While the Court notes Plaintiff is in Pro Per, Pro Pers must abide by the Civ. Pro. Code and Cal. Rules of Court: (See Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1284 ["pro per litigants are not entitled to special exemptions from the California Rules of Court or Code of Civil Procedure"].) Moreover, the fact that plaintiff is in pro per does not afford him special treatment. [Nwosu v. Uba (2004) 122 Cal.App.4th 1229, 1246-1247.] Therefore, the unopposed Motion for Judgment on the Pleadings is GRANTED in its entirety with 20 days leave to amend. Defendant to give notice. 2. Case Management Conference
109	**Riar vs. Volkswagen Group of America, Inc.**	1. Motion for Attorney Fees As corrected by a Notice of Errata, Plaintiff, Keerat Riar ("Plaintiff"), moves for an order awarding

	24-01434242	Plaintiff attorney's fees, costs and expenses from Defendant, Volkswagen Group of America, Inc. ("VWGOA"), in the total amount of $160,958.39 consisting of a lodestar in the sum of $114,637.38, a 0.25 multiplier of $28,659.35, and costs and expenses in the sum of $17,661.66. The Motion is GRANTED, in part, as follows. Initially, the opposition was served and filed one day late. Despite this, the Court will consider the opposition. Entitlement to Attorneys' Fees and Costs Civil Code section 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794(d).) "A prevailing party under [Code of Civil Procedure] section 1032 is not necessarily a prevailing party under a separate attorney fee statute. [Citation.] As explained in Wohlgemuth v. Caterpillar Inc. (2012) 207 Cal.App.4th 1252, 144 Cal.Rptr.3d 545, regarding the [Song-Beverly Consumer Warranty] Act: "[W]here (as here) a fee-shifting statute is concerned, a number of Courts of Appeal have taken the approach that attorney fees recovery is governed by the fee-shifting statute itself, rather than a rigid adherence to Code of Civil Procedure section 1032. Under this analysis, if the particular fee-shifting statute does not define prevailing party, then the trial court should simply take a pragmatic approach to determine which party has prevailed. That is, the trial court would determine which party succeeded on a practical level, by considering the extent to which each party realized its litigation objectives. [Citations.] Section 1794(d) is

		likewise a remedial fee-shifting statute, and thus the same practical approach to the issue of prevailing party is applicable to section 1794(d).' [Citation.]" (MacQuiddy v. Mercedes-Benz USA, LLC (2015) 233 Cal.App.4th 1036, 1047.) Here, there is no dispute that Plaintiff is the prevailing party as having received a settlement in the amount of $50,000 to resolve this action. (Ex. 2 to Declaration of David A. Goldsmith ("Goldsmith Decl.").) Lodestar A court assessing a claim for attorney's fees under Civil Code section 1794(d) uses the lodestar method to determine the reasonableness of such a claim. (Mikhaeilpoor v. BMW of North America (2020) 48 Cal.App.5th 240, 247-248 ("Mikhaeilpoor").) " 'The plain wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of the time spent and the amount charged . . . . "It requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." . . . [The] prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.' [Citation.]" (McKenzie v. Ford Motor

		Company (2015) 238 Cal.App.4th 695, 698, 703; Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247 [same].) “ ‘[T]he [party] . . . seeking fees and costs “ ‘bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.’ [Citation.]” ’ (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1320, 81 Cal.Rptr.3d 866.) “The law is clear, however, that an award of attorney fees may be based on counsel's declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) “…the verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Bd. Of Trustees Of California State Univ. (2005) 132 Cal. App. 4th 359, 396.) Reasonableness of Hourly Rates “ ‘ “The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. [Citations.] This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel. [Citations.]” ’ [Citations.]” (Pasternack v. McCullough (2021) 65 Cal.App.5th 1050, 1055.) “In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (Morris v. Hyundai

		Motor America (2019) 41 Cal.App.5th 24, 41 [citations omitted].) Plaintiff seeks fees for three attorney timekeepers: (1) David A. Goldsmith at $592.32 per hour; (2) Phuc Minh "Peter" Le at $437.80 per hour; (3) Theodore Swanson of the firm Resolute Trials who was associated to assist at trial at $665 per hour. (Goldsmith Decl., ¶¶ 8, 41; Declaration of Theodore Swanson ("Swanson Decl."), ¶ 12.) The requested hourly rates are supported by each attorney's experience and years of practice, as well as the approval of Mr. Goldsmith and Mr. Le's prior rates in 2025 for $575 per hour and $425 per hour, respectively, and the approval of Mr. Swanson's rate of $665 in 2025. (Goldsmith Decl., ¶¶ 37-40, 44, 62; Swanson Decl., ¶¶ 3-13.) These rates are also supported by consumer fee surveys, the United States Consumer Law Attorney Fee Survey Report for "vehicle cases", and the Real Rate Report. (Goldsmith Decl., ¶¶ 50-54, 57; Swanson Decl., ¶¶ 15-16.) Based on the foregoing, the Court finds the requested rates for attorneys David A. Goldsmith at $592.32 per hour, Phuc Minh "Peter" Le at $437.80 per hour, and Theodore Swanson at $665 per hour to be reasonable and commensurate with the prevailing rates charged by attorneys of similar experience specializing in lemon law in the community of Orange County. Although VWGOA requests the Court reduce the requested $592.32 hourly rate for Mr. Goldsmith to $400 and the requested $437.80 hourly associate rate for Mr. Le to $300, VWGOA provides no evidence to support these reduced rates. VWGOA does not dispute the hourly rates sought by Mr. Swanson. Plaintiff also seeks fees for paralegals and support staff as follows: Galyn Bradshaw (paralegal at $200 per

		hour), Lasha Alvarez (paralegal at $200 per hour), Elizabeth De Jesus Gutierrez (staff at $150 per hour), and Michelle Karpathy (paralegal at $150 per hour) (Goldsmith Decl., ¶¶ 43, 45-48.) Based on each paralegal's experience, the Court finds the rates reasonably and commensurate with the prevailing rates charged by paralegals of similar experience and qualifications in the community of Orange County. VWGOA does not dispute the hourly rates sought for the paralegals or staff. However, the Court finds that Elizabeth De Jesus Gutierrez for which Plaintiff requests $150 per hour (a paralegal rate) is not supported. Plaintiff's counsel does not state that she is a paralegal and does not otherwise provide what role she held to warrant this billing rate. (Goldsmith Decl., ¶ 47.) The work performed totaling 0.7 hours for a total amount of $105 is not compensable. (See Ex. 1 to Goldsmith Decl.) Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (Missouri v. Jenkins (1989) 491 U.S. 274, 288, fn. 10.) Tasks that are purely clerical are noncompensable or compensable at a reduced billing rate. (Save Our Uniquely Rural Community Environment v. County of San Bernardino (2015) 235 Cal.App.4th 1179, 1187.) The Court DEDUCTS $105 from the requested lodestar total of $114,637.38 for a total of $114,532.38. Reasonableness of Time Expended A court has wide discretion in determining what constitutes reasonable attorney fees. The court typically makes this determination based upon declarations without live testimony. The value of legal services performed in a case is a matter in which the court has its own expertise and thus may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096; Padilla

		v. McClellan (2001) 93 Cal.App.4th 1100, 1107; Syers Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 698 [“experienced trial judge is the best judge of the value of professional services rendered in his court”].) To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may “attack the itemized billings with evidence that the fees claimed were not appropriate or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc. (2008) 163 Cal.App.4th 550, 563-564.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Id. at p. 564.) “The party opposing the fee award can be expected to identify the charges it considers objectionable. A reduced award might be fully justified by a general observation that an attorney over litigated a case or submitted a padded bill or that the opposing party has stated valid objections.” (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 101.) Here, Plaintiff provides that each timekeeper expended the following time: 1. Attorney David A. Goldsmith (DAG) – 134.10 hours 2. Attorney Phuc Minh “Peter” Le (PL) – 34.65 hours 3. Attorney Theodore Swanson – 27.9 hours 4. Paralegal Galyn Bradshaw (GB) – 6.4 hours

		5. Paralegal Lasha Alvarez (LA) – 0.35 hours 6. Paralegal Michelle Karpathy (MK) – 0.2 hours (Ex. 1 to Goldsmith Decl., Goldsmith Decl., ¶ 3; Swanson Decl., ¶ 22, Ex. 1.) In support of the hours expended, Plaintiff provides that the litigation began in October of 2024 and the case was not settled in principle until 3 days before trial, on March 6, 2026; and that there have been 12 motions in this case, 4 depositions, and substantial preparation for trial including preparation of trial documents and 13 motions in limine filed by Defendant and 8 filed by Plaintiff. (Goldsmith Decl., ¶¶ 17-18.) Plaintiff's counsel provides that aspects of litigation in this case were "unusually vigorous and increased the costs of litigation substantially" including that VWGOA cancelled the PMQ deposition less than an hour before start time, filed a motion to compel a vehicle inspection despite having rejected multiple offers by Plaintiff to produce the vehicle for inspection, filed an ex parte application to exclude Plaintiff's expert witness testimony from trial, designated 4 separate expert witnesses for trial and refused to provide any dates for their depositions or to de-designate any of them until 19 days before trial, moved to quash Plaintiff's notices to appear at trial to the 4 designated experts and its PMQ and refused to produce its remaining expert witness until 4 days before trial. (Goldsmith Decl., ¶¶ 19-20, 72-73.) Thus, Plaintiff's counsel provides that they expended more than the usual time prosecuting a lemon law case, and that they expended time for more than 2 years, up through the eve of trial. Duplicative, Excessive Billing Entries VWGOA contends that the billing record includes entries for routine work that should have been completed by an associate or paralegal, such as preparing a notice of ruling for a case management

		conference, renaming and organizing documents, and drafting notices in lieu of subpoenas such that, at the very least, the claimed 15 hours billed for $8,614.39 in relation to research should be reduced to 7.4 hours for $2,880.00, and the 36.5 hours billed for $19,640.33 in relation to work that should have been conducted by an associate or paralegal should be reduced to 30.25 hours for $8,675.00. (Declaration of Allison Yniguez ("Yniguez Decl."), ¶¶ 5-6.) With regards to the 15 hours billed for research, the amount of time expended for the 8 entries identified by VWGOA appear reasonably incurred and specific to the needs and requirements in the prosecution of this case. Therefore, the Court makes no deduction. As to the 36.5 hours in relation to work that VWGOA claims should have been conducted by an associate or paralegal, VWGOA first claims that the hours should be reduced to 30.25 but fails to specify what VWGOA requests be deducted and why 6.25 hours should be deducted. (Yniguez Decl., ¶ 6.) Additionally, a review of the entries listed in this category are entries by associate, PL, and paralegal LA, totaling 4 hours. Therefore, VWGOA requests that the Court apply an associate or paralegal rate to work performed by DAG, which totals 32.5 hours. A trial court may reduce rates if it finds that partners did work that could have been done by lower-billing attorneys, or that attorneys did work that could have been done by paralegals. (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41 [finding that even if plaintiff established that her attorneys' rates were generally commensurate with other consumer law attorneys with the same level of experience and skill, the trial court may consider a number of other factors in determining that reductions in the attorneys' hourly rates were warranted including "that the matter was not complex; that it did not go to trial, that the name partners were doing work that could have been done by

		lower-billing attorneys' and that all the attorneys were doing work that could have been done by paralegals"].) None of the entries VWGOA identified could have been performed by a paralegal. Upon review of the entries identified by VWGOA, the entries involving drafting the mediation brief (2/11/26 for 2.75 hours), attending mediation (2/13/26 for 4.25 hours), and appearing on the first day of trial to advise of settlement (3/9/26 for 1 hour), totaling 8 hours, are properly conducted and charged by a partner rate of $592.32. The remaining entries identified by VWGOA which relate to research, discovery, and reviewing, drafting, and opposing motions, totaling 24.5 hours (32.5 total hours - 8 hours), are properly charged at an associate rate of $437.80. The Court therefore DEDUCTS $3,785.74 ((24.5 x $592.32) – (24.5 hours x $437.80)) from the aforementioned reduced lodestar total of $114,532.38, for a reduced total of $110,746.64. Time Expended on Fee Motion Lastly, VWGOA also contends that fees for the instant motion are not authorized, and that assuming Plaintiff is entitled to recovery of fees incurred in connection with the instant fee motion, an unreasonable amount of time was spent on this motion. VWGOA also asserts that to the extent that recovery of any fees incurred in connection with this Motion is allowed, only the fees and costs actually incurred – not anticipated—should be awarded. Plaintiff properly seeks fees for the instant fee motion. When attorney fees are recoverable by statute, the reasonable attorney fees incurred in bringing the

		motion are also recoverable. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 1002.) With regards to the attorney's fees for the fee motion, the 9 hours expended and anticipated consisting of 2.75 hours for the motion, 1 hour for proofing, creating a table of contents and authorities, and bookmarks to exhibits to declarations, 3 hours to review the opposition and draft a reply, and 2 hours to prepare for and appear for the hearing appear excessive as the opposition is not detailed or extensive and in light of the time it took to draft the motion. (Ex. 1 to Goldsmith Decl.; Reply Declaration of David A. Goldsmith, ¶ .) The Court DEDUCTS 2 hours from DAG for a total DEDUCTION of $1,184.64 from the lodestar total of $110,746.64 for final reduced total of $109,562. Based on the foregoing, the Court GRANTS Plaintiff attorney's fees in the amount of $109,562 from VWGOA. Multiplier "The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased." (Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247.) "The trial court is neither foreclosed from, nor required to, award a multiplier. [Citations.]" (Ibid.) The lodestar may be adjusted based on factors including (1) the novelty of and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) "Such fee enhancements are intended to compensate for the risk of loss generally in contingency cases as a class. [Citation.]" (Id. at p. 1133.) "[F]or the most part, the difficulty of a legal question and the quality of representation are already encompassed in the lodestar. A more difficult legal question typically requires more attorney hours, and a

		more skillful and experienced attorney will command a higher hourly rate." (Id. at pp. 1138–1139.) Here, Plaintiff argues that all factors weigh in favor of a 0.25 enhancement. As to the first factor, while the case may have presented a new technical issue with regard to "ghost codes" or "ghost faults," that was at the core of this case, this issue itself is not difficult simply because it required expert witnesses, took more time, or was an issue new to counsel. (Goldsmith Decl., ¶¶ 66-69.) There is no showing of particular skill by Plaintiff's counsel simply because VWGOA tripled its highest previous settlement offer after Plaintiff's expert witness was deposed. There is no showing that Plaintiff's counsel exhibited particular skill in selecting their expert witness. (Goldsmith Decl., ¶ 70.) In addition, Plaintiff's counsel does not show that the litigation precluded employment by Plaintiff's counsel; Plaintiff's counsel only shows that there was increased work relating to expert witnesses and motions relating to trial such that the inability to work on other cases appears to have been limited to a time close to trial, which is not uncommon in any case. (Goldsmith Decl., ¶¶ 71-74.) Lastly, the contingent nature of the fee award and delay in receipt of payment is applicable here but does not warrant a multiplier as any risk does not appear substantial, and the delay in this case is not unique or different from other lemon law cases. (Goldsmith Decl., ¶¶ 76, 81, 83.) Further, the outcome was not so "excellent" as to justify a multiplier. Based on the foregoing, the Court DENIES Plaintiff's request for a lodestar enhancement. Costs Plaintiff is also entitled to recover all costs and expenses that were reasonably incurred in prosecuting this case, in the amount of $17,661.66. (Goldsmith Decl., ¶ 105, Exs. 1 and 23; See ROA 235, Memorandum of Costs.)

		Defendant does not oppose the costs and has not filed a motion to tax costs. The Court GRANTS cost in the amount of $17,661.66. Plaintiff to give notice. 2. Order to Show Cause re: Dismissal on Settled Case
110	**Martin vs. General Motors LLC** **25-01488670**	Motion for Attorney Fees Plaintiffs Maria L. Martin and Anthony Martin ("Plaintiffs") move for an order granting Plaintiffs attorney fees and costs against defendant General Motors LLC in the amount of $11,127.36. To determine the appropriate fee award under Civil Code section 1794, the Court applies the loadstar method. Under the lodestar method, the base amount is calculated from a compilation of time reasonably spent and reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48.) Plaintiffs' counsel spent 22.3 hours litigating this action, which involved initiating the action, initial disclosures, mediation, and facilitating settlement. The hourly rates for counsel range from $560 to $440 per hour and the rates for paralegals is $215 per hour. Based on the Court's experience and knowledge of the prevailing rates in the Orange County area for similar services, the Court finds the number of hours expended, considering the work performed, and counsel's hourly rates to be reasonable. In light of the above, the Motion for Attorney Fees is GRANTED. Moving party to give notice.

111	**Neri Bahena vs. Gregory's Pallet Inc.** **22-01281126**	Motion for Reconsideration Plaintiff Pedro Neri Bahena has filed a "Motion for Reconsideration and/or Finding of Contempt and Other Sanctions." It is unclear what relief Plaintiff is requesting by way of this motion. Although the notice cites to CCP §1008, it does not indicate what the Court is requested to reconsider. Under the heading "Reconsideration," the motion states that the court "is authorized to and should reconsider ruling on defendant's demurrer." However, the only argument made is that there is no final order granting demurrer without leave to amend, and therefore Defendant Certified Enterprises, Inc. is still a party to this action. A motion for reconsideration made by a party must be based on new or different facts, circumstances, or law than those before the court at the time of the original ruling. (Code Civ. Proc. § 1008(a).) The motion must also be accompanied by an affidavit from the moving party that states: (1) what application was previously made; (2) when and to what judge; (3) what order was made; and (4) what new or different facts, circumstances or law are claimed to be shown. (Ibid.) Plaintiff has not met any of the above requirements. The declaration filed in support of the motion does not contain any of the required elements. Nor does Plaintiff explain what new or different facts, circumstances, or law justify reconsideration of the original ruling. It is unclear what Plaintiff is asking the Court to reconsider, given that Plaintiff contends there has been no final ruling. Nonetheless, the court has the inherent power to reconsider its ruling if it believes it to be in error. (Le Francios v. Goel (2005) 35 Cal.4th 1094, 1108; Marriage of Barthold (2008) 158 Cal.App.4th 1301, 1307-1308.) Although not an issue raised by either party, in reviewing its 4/14/26 order sustaining

		Defendant Certified Enterprises, Inc.'s demurrer to Plaintiff's Complaint without leave to amend (ROA 180), the Court concludes that its prior ruling was erroneous insofar as Plaintiff was denied leave to amend. "'[F]or an original complaint, regardless [of] whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint "shows on its face that it is incapable of amendment."' (Tarrar Enterprises, Inc. v. Associated Indemnity Corp. (2022) 83 Cal.App.5th 685, 688.) "Where a demurrer is sustained or a motion for judgment on the pleadings is granted as to the original complaint, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment." (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852, disagreed with on other grounds by de Villers v. County of San Diego (2007) 156 Cal.App.4th 238, 254.) Thus, "leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action." (Ibid.) Here, upon further consideration, it is not clear to the Court that there is no reasonable possibility that Plaintiff cannot state a good cause of action. The Court denies Plaintiff's motion insofar as it seeks an OSC re: Contempt. Accordingly, the Court DENIES Plaintiff's motion for reconsideration and for contempt. However, the Court MODIFIES its 4/14/26 order as follows: The first line of the ruling shall now read: The demurrer is SUSTAINED with 20 days leave to amend. The time for leave to amend shall run from the date notice of the modifications to this order is given.

		The third from the last paragraph shall read: Here, Plaintiff has not asserted claims for false imprisonment, wrongful termination or civil rights violations. The claim is that he was personally injured while working. Plaintiff has not shown any applicable exception to workers' compensation exclusivity. Nor has Plaintiff demonstrated that these pleading defects can be cured by amendment. Nonetheless, as this is Plaintiff's first attempt to plead his claims, the Court will grant leave to amend. Defendant Certified Enterprises, Inc. to give notice.
112	**Bian vs. Latreill** **24-01390510**	Anti-SLAPP Motion Plaintiff/Cross-Defendant Wenqiang ("Wayne") Bian ("Bian") moves to strike the second and third causes of action from Defendant/Cross-Complainant Rene Francis ("Ray") LaTreill's ("LaTreill") Cross-Complaint ("XC") pursuant to Code of Civil Procedure section 425.16. Code of Civil Procedure section 425.16 provides, in relevant part: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16(a).) Code of Civil Procedure section 425.16(e) sets forth four categories of protected speech for an anti-SLAPP motion, which includes "any written or oral statement or writing made before a . . . judicial proceeding." (Code Civ. Proc., § 425.16(e)(1).)

		The court's determination of an anti-SLAPP motion is a two-step process. First, the court determines if the party moving to strike a cause of action has met its initial burden to show that the cause of action arises from an act in furtherance of the moving party's right of petition or free speech. Then, if the court determines that showing has been made, the court determines whether the opposing party has demonstrated a probability of prevailing on the claim. (Navellier v. Sletten (2002) 29 Cal.4th 82, 88.) The plaintiff "must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment." (Premier Med. Mgmt. Systems, Inc. v. California Ins. Guar. Assn. (2006) 136 Cal.App.4th 464, 476 [emphasis in original; internal quotes omitted].) Here, the Cross-Complaint's second cause of action for "breach of contract – conflict waiver agreement" and third cause of action for "promissory estoppel – promise not to sue" allege that Bian breached the Conflict Waiver Agreement and breached his promise not to bring claims against LaTreill by filing this lawsuit. (XC ¶¶ 39, 46.) Thus, the claims are based on statements made before a judicial proceeding and therefore arise out of protected speech. "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.) The elements of a promissory estoppel claim are (1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) the reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance. (Wells Fargo Bank, Na. v. FSI,

		Financial Solutions, Inc. (2011) 196 Cal.App.4th 1559, 1573.) Both of the challenged claims involve an element of damages. LaTreill contends he has made a prima facie showing of damages in that he has incurred and continues to incur attorney's fees, costs, and other expenses defending against claims Bian promised not to bring and prosecuting the cross-complaint. (Oppn. at 14:20-23; 16:4-7.) "California follows the American rule regarding attorney's fees. Under that rule, litigants are ordinarily responsible for paying their own attorney's fees, unless a statute or agreement provides otherwise. (Travis v. Brand (2023) 14 Cal.5th 411, 417 (citing Essex Ins. Co. v. Five Star Dye House, Inc. (2006) 38 Cal.4th 1252, 1257; Code Civ. Proc., § 1021.) Another exception is that "[a] person who through the tort of another has been required to act in the protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney's fees, and other expenditures thereby suffered or incurred." (De La Hoya v. Slim's Gun Shop (1978) 80 Cal.App.3d Supp. 6, 8.) As observed by the Court in De La Hoya v. Slim's Gun Shop: In Pacific Coast Title Ins. Co. v. Hartford Accident & Indemnity Co. (1958), 7 Utah 2d 377, 325 P.2d 906, at page 907, the court recognized the rule that attorney fees are not generally recoverable unless expressly provided for by contract or statute. It stated, however, that the rule applies only to claims for attorney fees within the action itself (exactly as Prentice v. North America Title Guarantee Corp., supra, had stated (59 Cal.2d, at pp. 620-621.)).

		(De La Hoya v. Slim's Gun Shop (1978) 80 Cal.App.3d Supp. 6, 10.) In this case, the purported agreement does not address attorney’s fees. (See Bian Decl., Exh. 8.) Further, LaTreill points to no statute or any provision that would allow him to recover attorney’s fees and costs as damages. The cases cited by LaTreill in support of his argument that attorney’s fees may be recovered as damages involved contracts with attorney’s fees clauses. As LaTreill has not met his burden of proof, the motion is GRANTED. Attorney’s fees and costs to be determined pursuant to Code Civ. Proc., § 425.16(c)(1) via noticed motion. Bian’s objections to the LaTreill declaration are OVERRULED. The Court declines to rule on LaTreill’s objections to Bian’s declaration as they are immaterial to the disposition of this motion. Moving Party to give notice.